

Public Motion to Seal and Continue Lower-Court Sealing

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A02

Filed: 2026-04-01

Relief requested

Cinder Lake moves to maintain protection for the sealed petition and sealed essential-record appendix while filing public redacted counterparts of equal page length.

The motion identifies the Sealed Petition for Writ of Mandamus and Sealed Essential-Record Appendix by title and asks that protection continue through disposition of the writ or further order. It does not request sealing of the docket, legal questions, public response letter, or final disposition. That defined object and duration permit the court to evaluate access without obscuring the proceeding as a whole.

Source of confidentiality

The protected material derives from the outside-counsel memorandum and privilege log provisionally lodged in the district court after a public Rule 79.2 motion and notice.

Local Civil Rule 79.2 governed the district lodgment, and Standing Order 25-SO-1 required offline service because sealed district materials were not electronically viewable or served through CM/ECF. The appellate motion accurately describes that provenance. It does not suggest the Fourth Circuit can retrieve sealed district material electronically; access instead depends on this Court's sealing decision and lawful service.

Narrow tailoring

Proposed redactions cover communications, interview substance, mental impressions, and item-level privilege descriptions; public dates, issues, legal arguments, and nonprivileged facts remain visible.

Each proposed deletion is tied to a protected category, not embarrassment or tactical preference. Interview attributions and questions reveal confidential communications; counsel's selection and evaluation can reveal work product; detailed log descriptions can disclose the substance being protected. The motion leaves dates, actors' general roles, document families, public remedial steps, and the parties' competing legal theories available for public scrutiny.

Public and sealed pairs

The public petition pairs page for page with the sealed petition, and the public appendix pairs page for page with the sealed appendix. Public citations remain usable without exposing protected material.

The equal-page design keeps citations consistent for public and authorized readers. A public reader uses the redacted petition or appendix; a person whom the Court permits to inspect protected material may consult the corresponding sealed page. This motion itself grants no access. It asks the Court to decide whether sealed review is justified while preserving a usable public counterpart.

Requested order and service

The motion asks for no merits relief, identifies the access list and confidentiality certificate, and certifies service on Calder and delivery of the writ materials to the trial judge.

Calder receives the public motion and counterparts through the ordinary filing channel, while protected copies go only to authorized recipients. The trial judge receives the Rule 21 package as separately certified. If any material is ordered unsealed, the existing public counterparts remain public and Cinder Lake will file a court-approved public replacement or narrower redaction; sealed copies will be returned, destroyed, or otherwise handled as the Court directs.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.